

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #12	CCRB Case #: 201709933	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 11/25/2017 4:10 AM	Location of Incident: 170-03 Jamaica Avenue	Precinct: 103	18 Mo. SOL 5/25/2019	EO SOL 5/25/2019	
Date/Time CV Reported Sat, 11/25/2017 6:54 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/30/2017 10:31 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT James Berk	01311	949358	103 PCT
2. POM James Barrett	09724	955744	103 PCT
3. POM Anthony Mceniry	14127	956077	103 PCT
4. POM David Hovestadt	12072	950598	103 PCT
5. POM Christophe Dachille	02871	961718	103 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jovan Hall	13693	955969	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM James Barrett	Force: Police Officer James Barrett used physical force against § 87(2)(b)	
B.POM Anthony Mceniry	Force: Police Officer Anthony Mceniry used physical force against § 87(2)(b)	
C.POM David Hovestadt	Force: Police Officer David Hovestadt used physical force against § 87(2)(b)	
D.POM Christophe Dachille	Force: Police Officer Christophe Dachille used physical force against § 87(2)(b)	
E.SGT James Berk	Force: Sergeant James Berk used physical force against § 87(2)(b)	

Case Summary

On November 25, 2017, Sergeant James Berk, of the 103rd Precinct, filed this complaint with the Internal Affairs Bureau on behalf of § 87(2)(b). On November 30, 2017, this complaint was received at the CCRB under log #2017-47247.

Upon receiving CCRB case #201709933, the investigation was not provided with any contact information for § 87(2)(b). The investigation was provided his date of birth, but he was listed as homeless on the complaint report and arrest report prepared in relation to this incident. Additionally, the DAS snapshot provided to the investigation did not have any previous addresses listed. A search of the Complaint Tracking System's complaint log confirmed that there are not any other cases filed by or on behalf of § 87(2)(b) that would have potential contact information for him.

Lexis Nexis, DMV License database, Whitepages, NYC DOC searches, and a Department of Homeless Services inquiry all yielded negative results for § 87(2)(b).

A CLEAR search for an § 87(2)(b) born on § 87(2)(b), that lives in New York State yielded negative results. A CLEAR search for an § 87(2)(b) that lives in New York State yielded one possible associated address, but the birthdate was uncertain.

Two letters were sent to the address discovered in the CLEAR search. A search of the COLES directory for that same address did not yield any potential phone numbers for § 87(2)(b) or anyone with a similar name.

A search of the Bookings and Arraignment Disposition System for § 87(2)(b)'s NYSID number revealed that the arrest related to this complaint is his only arrest.

On two occasions, December 13, 2017 and January 5, 2018, the IAB-CCRB liaison office confirmed that they did not have any contact information for § 87(2)(b).

On January 30, 2018, searches of the NYC Department of Correction and NYS Department of Corrections inmate databases confirmed that § 87(2)(b) is not currently incarcerated.

§ 87(2)(g)

Squad No.: 12

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date